

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 23, 2026
8:30 a.m.

1. ASTRID RAMIREZ V. ADRIAN COYOTL

26FL0808

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on August 24, 2026, to set spousal support and child support for the parties' three minor children. The RFO also included a request for order shortening time, which the court granted. The court ordered Petitioner to serve the RFO on or before August 31, 2026, and ordered the Respondent to file and serve a Responsive Declaration on or before September 14, 2026.

Petitioner previously filed an Income and Expense Declaration (I&E) on August 20, 2026. Proof of service of summons, filed September 02, 2026, shows that Petitioner's RFO and I&E were both personally served upon Respondent on September 01, 2026. This is untimely service under the court's order shortening time, which required service to be made on or before August 31, 2026.

Nonetheless, on September 11, 2026, Respondent filed a timely Responsive Declaration and I&E, copies of which were personally served upon Petitioner that same day per the proof of service filed September 14, 2026. Based on these filings, the court finds Respondent has waived any defect in service of the RFO.

On September 17, 2026, Petitioner filed a Reply Declaration, a copy of which was electronically served upon Respondent on September 18, 2026, per the proof of service filed that same date. Proof of service filed September 17, 2026, shows Petitioner also served a copy of her Reply Declaration that day via mail.

Pursuant to the Temporary Restraining Order issued August 26, 2026, in this case, Petitioner has temporary sole physical custody of the children and Respondent has non-professionally supervised visitation with the children two days per week for up to two hours each visit. Therefore, for purposes of calculating child support, the court finds that Respondent's custody timeshare is 2 percent.

Petitioner's I&E indicates she works as a housekeeper for Cedar Pines Resort cleaning rental cabins. Petitioner is paid \$80 per cabin she cleans. However, she does not indicate how many cabins she cleans. She states she is paid in cash and does not receive any paystubs. Her I&E indicates her average monthly income is \$2,000.

In his Responsive Declaration, Respondent claims that Petitioner's gross monthly income is actually about \$3,000 to \$4,000.¹ In her Reply Declaration, Petitioner declares her average monthly income "is more like \$3,200 over the course of the past," but explains that when the season is "slow" she does not make enough money.

Respondent's I&E indicates he began a new job on September 03, 2026, at Edify Construction, where he earns \$18 per hour. As of September 11, 2026 (the date Respondent filed his I&E), he had not received a paycheck yet. On September 3, 2026, Respondent worked eight hours; on September 4, 2026, five hours; on September 8, 2026,

¹ Petitioner claims that Respondent illegally obtained evidence of Petitioner's income by breaking into the residence where Petitioner was staying and accessing Petitioner's laptop.

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four hours; and on September 09, 2026, five hours. The court calculates Respondent's current gross monthly income as \$2,340 (\$18 per hour x 30 hours per week x 52 weeks per year = \$28,080; \$28,080 / 12 months = \$2,340 per month).

As shown in the attached XSpouse calculation printout, Respondent is ordered to pay Child Support to the Petitioner in the amount of \$1,012.00 beginning September 01, 2026, and the first of each month thereafter until further order of the court. Respondent is not required to pay any Spousal Support at this time.²

The court sets a review hearing for December 30, 2026, to be heard concurrently with the hearing on Petitioner's RFO filed August 20, 2026. The court will retain jurisdiction over the issue of child support and spousal support, including jurisdiction to retroactively modify the support amounts based upon updated information provided to the court. The court orders both parties to file and serve a current I&E, as well as any supplemental declarations, on or before December 18, 2026.

TENTATIVE RULING #1: RESPONDENT IS ORDERED TO PAY CHILD SUPPORT TO THE PETITIONER IN THE AMOUNT OF \$1,012.00 BEGINNING SEPTEMBER 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT. RESPONDENT IS NOT REQUIRED TO PAY ANY SPOUSAL SUPPORT AT THIS TIME.

THE COURT SETS A REVIEW HEARING FOR DECEMBER 30, 2026, TO BE HEARD CONCURRENTLY WITH THE HEARING ON PETITIONER'S RFO FILED AUGUST 20, 2026. THE COURT WILL RETAIN JURISDICTION OVER THE ISSUE OF CHILD SUPPORT AND SPOUSAL SUPPORT, INCLUDING JURISDICTION TO RETROACTIVELY MODIFY THE SUPPORT AMOUNTS BASED UPON UPDATED INFORMATION PROVIDED TO THE COURT. THE COURT ORDERS BOTH PARTIES TO FILE AND SERVE A CURRENT I&E, AS WELL AS ANY SUPPLEMENTAL DECLARATIONS, ON OR BEFORE DECEMBER 18, 2026.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

² The XSpouse calculation shows that, as the higher earner, Petitioner would generally be responsible for paying Respondent \$235 Spousal Support under the guideline formula. However, there is presently no request before the court to order Petitioner to pay Respondent Spousal Support.

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	3	2026			
% time with NCP	2.00 %	0.00 %				
Filing status	HH/MLA	HH/MLA	GUIDELINE	Comb. net spendable	5871	5871
# exemptions	1 *	4 *	Nets(adjusted)	Percent change	0%	0%
Wages+salary	2340	3200	Father	Father		
Self-employed income	0	0	Mother	Payment cost/benefit	-777	-777
Other taxable income	0	0	Total	Net spendable income	1324	1324
TANF+CS received	0	0	Support	Change from guideline	0	0
Other nontaxable income	0	0	Addons	% of combined spendable	23%	23%
New spouse income	0	0	Guideln CS	% of saving over guideline	0%	0%
401(k) employee contrib	0	0	Alameda SS	Total taxes	238	238
Adjustments to income	0	0	Total	Dep. exemption value	0	0
SS paid prev marriage	0	0	CS range: -726--1012	# withholding allowances	0	0
CS paid prev marriage	0	0		Net wage paycheck	2026	2026
Health insurance	0	0		Mother		
Other medical expense	0	0		Payment cost/benefit	777	777
Property tax expense	0	0		Net spendable income	4547	4547
Ded interest expense	0	0	Proposed	Change from guideline	0	0
Charitable contributions	0	0	Tactic 9	% of combined spendable	77%	77%
Misc tax deductions	0	0	CS	% of saving over guideline	0%	0%
Qual bus income ded	0	0	SS	Total taxes	-569	-569
Required union dues	0	0	Total	Dep. exemption value	0	0
Mandatory retirement	0	0		# withholding allowances	0	0
Hardship deduction	0 *	0 *	Saving	Net wage paycheck	2685	2685
Other GDL deductions	0	0	Releases			
Child care expenses	0	0				

Father pays Guideline CS, Proposed CS

Mother pays Guideline SS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	1 - 99	0	0	0	Father	1012	Father	1012	Father
	2 - 98	0	0	0	Father	200	Father	200	Father
	2 - 98	0	0	0	Father	303	Father	303	Father
	2 - 98	0	0	0	Father	509	Father	509	Father

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2. DAVID SMITH V. CYNTHIA SMITH

22FL0136

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on July 29, 2026, to compel Respondent's required disclosures under Family Code sections 2104 and 2105.

A hearing on the RFO was originally set for September 09, 2026. On September 08, 2026, the court issued a tentative ruling that incorrectly stated there was no proof of service for the RFO in the court's file. In fact, Petitioner filed proof of service on August 12, 2026, which shows the RFO was personally served upon Respondent on August 11, 2026. During the September 9 hearing, the court vacated its tentative ruling and continued the matter to September 23, 2026. The court ordered Petitioner to serve Respondent notice of the continued hearing date, as well as the court's tentative ruling issued September 08, 2026. On September 15, 2026, Petitioner filed the required proof of service, showing personal service of the September 08, 2026, tentative ruling and September 09, 2026, minute order on September 12, 2026.

Also on September 15, 2026, Respondent filed a Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration (Judicial Council form FL-141), indicating that she served the required preliminary and final disclosures upon Petitioner via mail that same day. Therefore, the Petitioner's RFO appears to be moot.

The court denies the RFO as moot.

TENTATIVE RULING #2: THE COURT DENIES PETITIONER'S RFO AS MOOT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.